Special Interrogatories, Requests for Production, Requests for Admission. Despite the Court's order to meet and confer, Plaintiff did not meaningfully meet and confer in good faith regarding the subject discovery. Instead, as to the few discovery matters addressed, Plaintiff stated or indicated that either (1) answers "were not good enough" and when asked for an explanation, Plaintiff stated that he did not wish to discuss [the Special Interrogatories] any further and "wanted the court to decide;" or (2) just wanted the Court to decided or (3) did not want to continue the meet and confer conversation but instead indicated the Court should decide.

This is not meeting and conferring. The Court finds that Plaintiff failed to comply with the Court order to (1) meet and confer and (2) filed a joint status report.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504966	AVERY GARDEN ASSISTED LIVING INC. VS BMW OF NORTH AMERICA, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

MOTION GRANTED, Attorney Fees awarded are $9,400.00, and Plaintiff has substantiated $1,008.01 in costs. Defendant has made no challenges to the costs.

Plaintiffs Avery Garden Assisted Living Inc., Linda Thomas and Erik Thomas allege that they purchased a new 2022 BMW 750I that contains defects to the electronics, interior component, exterior and body component, sunroof, suspension system, electrical, infotainment system, and instrument cluster. Plaintiffs filed this action on 8/11/25 and filed the First Amended Complaint (FAC) as a matter of right on 12/4/25. The FAC asserts: (1) breach of express warranty; (2) breach of implied warranty; and (3) Civil Code § 1793.2(b).

On 1/13/26, Plaintiffs filed a notice of settlement.

Plaintiffs move for attorney fees and costs of $26,580 ($17,720 lodestar, $8,860 multiplier, $1,008.01 costs). Plaintiffs discuss the procedural history, and contend the fees are reasonable. They request a multiplier based on the risk of contingency and delay in payment.

Defendant contends that there was only two months between Defendant's answer and the 998 offer that Plaintiff accepted. It points out that there was no motions, discovery, or trial preparation—Plaintiffs filed their complaint and Defendant offered a repurchase. Defendant contends the reasonable fees are $6,000. It argues that Plaintiff's counsel spent 12 minutes trying to resolve this with Defendant before motion practice. It asserts that Plaintiffs filed a FAC after Defendant notified the deficiencies in the original complaint, and spent multiple time revising the FAC. It argues the court should strike any fees after the section 998 offer. It contends the court should strike the fees for this motion. It states that there is no basis for a multiplier. It argues that there are no exhibits to support the costs of $1,008.01.

In reply, Plaintiffs argue they tried to resolve the fees motion in good faith, to which Defendant did not provide a response to their email. It otherwise argues the fees are reasonable. It argues the costs can be cross-referenced with the billing dates. It otherwise repeats the arguments from the moving papers.

In a supplemental declaration, Plaintiffs' counsel provides invoices for the costs.

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id*.) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on a review of the billing records, counsel spent as follows:

Attorney	**Hours**	**Hourly Rate**	**TOTAL**
Brim, Mitchel (associate)	15.5	$550	$8,525.00
Murray, Brian (senior associate)	.3	$550	$165.00
Rosenstein, Michael (partner)	12.9	$700	$9,030.00
TOTAL	28.7		$17,720.00

First, the hourly rates are excessive. Plaintiffs make no showing that they could not obtain local counsel and therefore are entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) A more reasonable amount is $400 for associates and $550 for partners.

Second, there was excess time spent on certain tasks. The court reduces/removes the following entries: 9/26/25 (.1) and 12/12/25 (.1) appear to be clerical work and is reduced to zero; 12/3/25 in drafting the FAC is reduced to 1.5 hours; time spent on the SAC (.8) is unreasonable when Defendant provided the 998 offer, and is reduced to zero; 10.7 hours spent on this fee motion is excessive and the court reduces the time to 5.0 hours.

As such, the court finds the following lodestar to be reasonable:

Attorney	**Hours**	**Hourly Rate**	**TOTAL**
Brim, Mitchel (associate)	13.5	$400	$5,400.00
Murray, Brian (senior associate)	.1	$400	$40.00
Rosenstein, Michael (partner)	7.2	$550	$3,960.00
TOTAL	20.8		$9,400.00

There should be no multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights…into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4t h 1122, 1132.) The party seeking enhancement has the burden of proof. (*Id*. at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id*. at 1138.) There is no basis for enhancement. This is merely double billing. Again, this was not a complicated case. As to the skill, again, there was no exceptional quality of work in this case to justify a multiplier.

As to costs, Plaintiffs only demonstrate $1,008.01—all of which are attorney service fees. However, contrary to the reply, they do not correspond with specific billing entries.

Plaintiffs HAS SINCE THE REPLY WAS FILED provided invoices for the costs. Defendant does not challenge the costs. The court awards the full amount as requested.

4.

CASE #	**CASE NAME**	**HEARING NAME**
RIC2002390	CARLSON D.O. VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO TAKE PLAINTIFF'S MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT OFF CALENDAR OR, IN THE ALTERNATIVE, TO DENY AS UNTIMELY